

GIFFIN v VASCONCELLOS, et al.

23CV46905

PLAINTIFF'S MOTION FOR PRELIMINARY INJUNCTION

On August 28, 2023, Robin Giffin ("Plaintiff") filed a Complaint against Steven Crane Vasconcellos ("Vasconcellos"), Sierra View Financial Corp. ("SVFC"), and County of Calaveras ("County"), seeking orders for partition, accounting, injunctive relief, and declaratory relief.¹

On July 11, 2024, Plaintiff filed a motion seeking a preliminary injunction ordering Vasconcellos to "immediately terminate and thereafter refrain until further order of the court, from any grading, earthmoving, or construction, or contracting with anyone else, or otherwise consenting to or allowing anyone else, to do any grading, earthmoving, or construction on the Subject Property or any of the adjacent property owned by the Bureau of Land Management."

As set forth below, Plaintiff's unopposed motion for preliminary injunction is **GRANTED**.

I. Factual Background

Plaintiff is a co-owner, as a tenant in common, of the real property commonly known as 16789 Highway 26, Glencoe, CA 95232 ("Subject Property") which is at the heart of the underlying Partition Action. Defendant Vasconcellos is the only other co-owner; the other defendants have liens of record on the Subject Property.

The Subject Property consists of about fifteen acres accessible from Highway 26 by an unpaved road of about two miles in length. There are two houses on the Property, one occupied by Plaintiff's caretaker and the other occupied by Vasconcellos (Declaration of Robin Giffin ("Giffin Decl.") ¶¶ 1, 2.)²

There are two related cases pending in Calaveras County Superior Court. The first is an Unlawful Detainer action Vasconcellos filed against caretaker Cam Luc (23UD 14167) that was judicially dismissed (Giffin Decl. ¶ 3.). The second related matter is a criminal case in which Vasconcellos is charged with a felony assault of Cam Luc (24F8898).

On or about May 11, 2024, Plaintiff learned from neighbors that Vasconcellos had hired workmen using heavy construction and grading machinery to conduct a grading operation covering a large area of the Subject Property. Plaintiff had no knowledge of

¹ Plaintiff has substituted Flagstar Banc Corp for Doe 1 and Mortgage Electronic Registration Systems, Inc. for Doe 2.

² Plaintiff lives in Placer County.

and had not consent to such work. (Giffin Decl. ¶ 5.) Plaintiff has never been provided with plans for any type of project and has never been provided with either an application for a building permit or the permit itself. (Giffin Decl. ¶ 6.) Approximately half of the area being worked on is BLM land. (Giffin Decl. ¶ 6, Ex. 3.)

On May 22, 2024, Plaintiff received an email from the Calaveras County Department of Public Works containing multiple photographs and a letter addressed to Plaintiff in which Public Works Permit Technician Sarah Liptrap stated:

On May 16, 2024, a Stop Work Notice was placed at 16789 Highway 26 for unpermitted grading activity and stormwater issues. The Public Works inspector noted that approximately 350 cubic yards of material was moved with +/- 9 feet of uncompacted fills. The earthwork and grubbing activity appeared to enter an adjacent property owned by the Bureau of Land Management (BLM).

The inspector spoke with someone on site who identified himself as the property owner and explained the requirements of an engineered grading permit after learning of the intent to build a structure at the graded location.

An engineered grading permit is required, and all necessary erosion and sediment control measures must be installed immediately.

The letter concluded, "No work shall take place, excepting immediate installation of erosion and sediment control measures" and demanded that written correspondence acknowledging the requirements of the engineered grading permit must be received by the Public Works no later than May 30, 2024 (Giffin Decl. ¶ 9.)

Despite the stop work notice, on or about June 1 or 2, 2024, Plaintiff learned that the grading and earthwork had resumed. (Giffin Decl. ¶ 9.)

During the pendency of this action, whether Vasconcellos is being represented by counsel has been unclear. Attorney David Axelrod has represented Vasconcellos in the pending criminal action involving Cam Luc. On May 23, 2024, Mr. Axelrod expressed to Plaintiff's counsel that he also represented Vasconcellos in the instant matter, but only for purposes of settlement. (Declaration of M. Campbell ("Campbell Decl.") ¶¶ 2-6.) On June 3, 2024, Plaintiff's counsel contacted Mr. Axelrod to determine whether communications about stopping work and proposed plans for the Subject Property fell within the confines of his representation of Vasconcellos. (Campbell Decl. ¶ 4.) On June 6, 2024, Mr. Axelrod reiterated that he was only representing Vasconcellos for settlement discussions, but that he might soon be engaged to represent him fully and "would let [Plaintiff's counsel] know". (Campbell Decl. ¶ 5, Ex. 6.) (The parameters of Axelrod's representation of Vasconcellos has been clarified by the filing of an unlimited Substitution of Attorney filed on August 6, 2024.)

On June 21, 2024, Plaintiff's counsel sent an email to Mr. Axelrod that contained proposed language for a preliminary injunction and asked him if his client would stipulate to such an order, and if not, what modifications they proposed. Mr. Axelrod responded that there was no need for a preliminary injunction because:

Mr. Vasconcellos has suspended all work of this nature on the property in question. He will stipulate and agree to continue the suspension, at least until necessary permits have been obtained and any other objections have been resolved. (Campbell Decl. ¶ 9, Ex. 8.)

On June 24, 2024, Plaintiff's counsel sent Mr. Axelrod language for a proposed agreement under which Vasconcellos would formally agree to cease any work on the Subject Property during the pendency of the underlying action. (Campbell Decl. ¶ 10, Ex. 9.) Mr. Axelrod did not respond to that email.

II. Legal Standard and Analysis

Typically, when determining whether to issue a preliminary injunction, the court considers two interrelated questions: (1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief. (*White v. Davis* (2003) 30 Cal.4th 528, 554; see also *Robbins v. Sup. Ct.* (1985) 38 Cal.3d 199, 206; Code Civ. Proc., § 526.)

However, in partition actions, the Court may issue a preliminary injunction for the purpose of 1) preventing waste, 2) protecting the property or title thereto, and c) restraining unlawful interference with a partition of the property ordered by the court. (Cal. Code Civ. Proc. § 872.130(a)-(c).)

Here Plaintiff has shown that despite an official stop work order, Vasconcellos has continued to conduct a large scale earthwork project on the shared Subject Property. This work has continued without a permit and, presumably, without the requisite immediate installation of erosion control measures. Plaintiff has, via counsel, attempted to work with Vasconcellos to either understand the nature of the project, or to have Vasconcellos stop the project until the underlying partition is completed. Nonetheless, Vasconcellos appears to continue the project and has failed to respond to reasonable overtures by Plaintiff's counsel.

Accordingly, there is great risk that without a preliminary injunction, Vasconcellos' actions will contribute to waste, will diminish or negatively affect the property or title thereto, and will unlawfully interfere with any partition ordered by this Court. As such, the Court is empowered to grant the Plaintiff's application for restraining order. Further, the Court notes that Vasconcellos failed to file any opposition to the present motion, despite his counsel's knowledge of the Plaintiff's application. "A failure to oppose a

motion may be deemed a consent to the granting of the motion." (Cal. Rule of Court 8.54(c).)

Accordingly, Plaintiff's application for a preliminary injunction is **GRANTED**.

The Clerk shall provide notice of the Ruling forthwith. Plaintiff to submit a formal Order pursuant to Rule of Court 3.1312 in conformity with this Ruling.

WELLS FARGO BANK, NA v LACY

22CF14003

PLAINTIFF'S MOTION TO AMEND JUDGMENT

On February 14, 2024, a default judgment was entered in favor of Plaintiff and against Defendant in the amount of \$11,223.43 (comprised of \$10,740.58 in damages, \$474.85 in court costs and \$8.00 in attorney fees). Plaintiff files the instant motion to correct a scrivener's error regarding attorney fees and requests the amount be amended to \$800.00.

The motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

In the instant matter the Court finds that the unopposed Motion to Amend Judgment though set on Law and Motion calendar is akin to an administrative, or clerical matter, and inclusion of notice in motion is excused.